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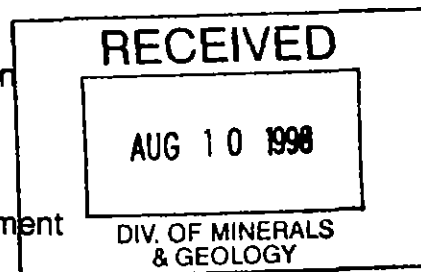
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August 5, 1998

To: Mr. Doug Lempke
Technical Secretary, Air Quality Control Commission

Mr. Robert Jorgenson
Supervisor, Field Services Section
Colorado Department of Public Health and Environment

Mr. Ram Seetharam
Stationary Sources Program, Air Pollution Control Division



From: St. Vrain Valley Community Watchdogs, P.O. Box 82, Hygiene, CO 80533

Re: Request for (1) inquiry (2) information (3) public hearing on Southdown's Permit Application

Where we stand now:

1. **Housekeeping Dust:** There appears to be a persistent housekeeping problem in and around the facility's buildings, roadways, and parking area. The enclosed photograph taken in the late afternoon of July 11, 1998 clearly illustrates the dust plumes which are episodically generated from this area. This terrifying dust storm persisted for approximately one hour, and it was reported to the Boulder County Health Department and Southdown Corporation.

On July 13, 1998, the Watchdogs received the following correspondence from the compliance officer at Southdown: "Thank you for the information concerning the dusty conditions that occurred Saturday evening July 11. I have informed John Lohr and our staff of the situation and we will investigate the conditions and circumstances."

Sadly for the suffering public, the plumes never seem to occur when government inspectors are present. Rest assured though, that these incidents are real, and as identified in the photo are attributed to a site-specific point source. The concentration of particles in these plumes suggests that compliance by Southdown regarding EPA Ambient Air Quality Standards should be examined by appropriate regulating authorities. There is a crack here (both obvious and serious) through which permit compliance falls. How can this crack be sealed to insure public safety?

Given the nature of the industry, it may also be possible that crystalline silica is present within the plume dust. The International Agency for Research on Cancer (IARC), an agency of the World Health Organization, evaluated the available medical literature on crystalline silica and concluded that "crystalline silica if inhaled should be considered carcinogenic (i.e., a group 1 substance)." (Crystalline Silica, Society for Mining, Metallurgy, and Exploration, Inc. 1998., p. 21.) As a matter of public safety, this speaks to the need for characterization of the dust's actual (not generically theoretical)

composition using state-of-the-art analytical methods by an independent lab.

2. **Permit Application:** There appears to be no fewer than three issues:

A. Increased PM 2.5 emissions and traffic. Not specified in permit application.

B. Installation of new equipment some of which may result in a decrease in annual dust emissions relative to the existing permit.

C. A request for increased production and consequent annual increase in overall annual emissions of PM 10 and TSP.

Reduction of annual dust emissions through installation of new equipment/procedures is an admirable objective and merits serious consideration, but keep in mind that a **major overall annual increase** is being requested. In advance of any establishment of baseline conditions generated under existing permit stipulation, it seems unwise and inappropriate to grant this increase given Southdown's historical track record in persistent release of uncharacterized and unmonitored fugitive dust plumes. Existing problems should be solved prior to any consideration of increasing emissions. (See photo)

Again, in advance of any establishment of baseline conditions generated under existing permit stipulation, it seems unwise and inappropriate to grant this increase.

3. **Quality of Life:** Studies by the American Lung Association, the EPA, and other scientists have shown that these air borne particulates are damaging to human health and may be life-threatening:

"The major health effects associated with high exposure to particulate matter include changes in lung function and increased respiratory symptoms, aggravation of existing respiratory and cardiovascular disease, alterations in the body's defense systems against foreign materials, damage to lung tissue, cancer, and, in extreme cases, premature death." (USEPA Journal, Vol 13, No. 10 "Particulates: Science Advances, Standards Change" p. 16.)

Furthermore, Mr. William Yellowtail, Regional Administrator for the USEPA has informed us that: "Fugitive dust is a serious problem because of the impacts it can have on respiratory functions and visibility. New national Ambient Air Quality Standards for particulate matter will help to safeguard the air quality in Lyons. EPA, Region 8 will continue to monitor the situation for continued progress."

The fugitive dust from Southdown has aroused legitimate health concerns, and **we would like to request:**

1. A comprehensive inquiry into Southdown's "dusty conditions" on July 11, 1998.

2. A review of Southdown's housekeeping methodology.
3. An analysis of site-specific dust composition.
4. Air quality monitoring station(s) in this community. Preferably one station sited near the neighbors who get the blunt of the fugitive dust; and a second station near the Hygiene elementary school.
5. A public hearing to address public concerns regarding Southdown's permit application to increase mining and manufacturing operations and increase 10 tons of uncharacterized and unidentified PM-10 emissions and 20 tons TSP emissions into the atmosphere.

4. Disposal Site Dust: The problem of baghouse dust blowing out of Southdown's disposal site has been brought under control thanks to aggressive enforcement measures by the Colorado Department of Public Health and the Environment, the Colorado Air Quality Control Commission, the Boulder County Health Department, and the Boulder County Land Use Commissioners.

Thank you for your consideration, and thank you for your assistance in helping us restore clean air in our community. We appreciate your support and concern.

cc: Senator Ben Nighthorse Campbell
Governor Roy Romer
Representative David Skaggs
Representative Bill Swenson
Senator Terry Phillips
Senator Sally Hopper
Representative Todd Saliman
Mr. William P. Yellowtail, Regional Administrator, USEPA
Mr. Richard Long, Director of Air Program, USEPA
Ms. Leona Stoecker, Mayor of Longmont
Mr. Nick Angelo, Mayor of Lyons
Mr. Robert Brady, Chairman, Air Quality Control Commission
Mr. Mike Mueller, Air Pollution Control Commission
Mr. Ray Mohr, Colorado Department of Public Health & Environment
Ms. Diana Shannon, Environmental Health Director
Mr. Dave Ouimette, Boulder County Health Department
Mr. Chuck Stout, Executive Director, Boulder County Health Department
Mr. Jeff Zayach, Boulder County Health Department
Mr. Ron Stewart, Ms. Jana Mendez, Mr. Paul Danish, Commissioners
Mr. Spence Havelick, Boulder City Councilman
Mr. Will Toor, Boulder City Councilman
Mr. Gene Nichol, Educator
Mr. Kenneth Blehm, Colorado State University

Mr. Robert Friend, District Manager, Mine Safety Health Administration
Mr. Herb Gibson, Department of Labor, OSHA
Ms. Janine Pryor, American Lung Association
Dr. Kevin Fennelly and associates: National Jewish Medical and Research
Ms. Hillery, Dr. Wolf, Dr. Marine, Ms. Hartman, Board of Health
Director, Boulder Medical Center, Asthma Research Center
Director, Longmont United Hospital
Longmont United Hospital, Prestigeplus Organization
Director, Boulder Community Hospital, Respiratory Disease Research Center
Mr. Carl Mount, Division of Minerals and Geology
Ms. Vickie Patton, Environmental Defense Fund Attorney
Mr. John Martin, Environmental Defense Fund
Mr. Ken Lloyd, Director, Regional Air Quality Control
Mr. Dave Root & Ms. Janet Root, Table Mountain Association
Mr. Eric Frankowski, Daily Times-Cali
Mr. Jeremy Breningstall and Mr. Richard Fleming, Boulder Weekly
Mr. Guy Kelly, Rocky Mountain News
Director, Land and Water Fund of the Rockies
Ms. Katy Human, Boulder Camera
Editor, The Old Lyons Recorder
Mr. Wayne Stone, Hygiene Elementary School and Parents' Association
Sierra Club
National Audubon Society
Mr. John Martin, St. Vrain Valley Bee Keepers Association
Mr. Thad Johnson, St. Vrain Valley Organic Farming Association
Ms. Jennifer Ellen, Stonebridge Farming Cooperative
National Wildlife Federation
Nature Conservancy
Excel Sports